

Defendants raised the purchase of a home by Plaintiff Randy Agno as a rebuttal to Plaintiffs' assertion of financial hardship in its opposition. See Defendants' Request for Judicial Notice. Although Plaintiffs failed to include substantial evidence of their assertions of financial hardship in their opening brief, consideration of the reply evidence does not alter the Court's determination. Thus, the Court's order is one that results from consideration of all pleadings submitted in relation to Plaintiff's request. It is notable this action stems from ownership of a vacation cabin, not a primary residence. In addition, Plaintiffs have asserted they acquired other vacation cabins during the pendency of this action. Finally, Plaintiff Randy Ryan Agno receives non-taxable disability income of almost \$5,000 per month, and, although her income is unknown, the Court is aware Plaintiff Amy Beth Agno is employed due to her multiple remote court appearances during which she indicates she is at work. The Court does not find Plaintiffs to be indigent nor that they have provided evidence of circumstances which would cause the Court to except them from the mandate of posting an undertaking.

Accordingly, Plaintiffs' request is hereby DENIED.

5. CU0001840 Richard A Perdomo Canales v. Best Western International, Inc., et al.

Defendant Best Western International, Inc. motion to compel responses to Form Interrogatories (Set One) is granted. Plaintiff Richard A. Perdomo Canales is ordered to provide further verified responses, *without objections*, to Form Interrogatories Nos. 12.2, 12.3, and 14.1 within thirty (30) days of notice of entry of this order.

Meet and Confer

Per the Declaration of Defendant's counsel, efforts were made to meet and confer prior to this filing. Mezger Decl., ¶¶ 8-9, Exhs. 5-6. It appears Plaintiff's counsel responded to these efforts by email noting Defendant's meet and confer efforts were insufficient because they did not identify the specific deficiencies alleged and relief sought. Mezger Decl., ¶ 10, Exh. 7. However, Plaintiff failed to offer an extension to Defendant's motion deadline to allow more time for meet and confer efforts. Thus, the Court admonishes Defendant for not engaging in meet and confer efforts prior to the eve of its motion deadline, and admonishes Plaintiff for arguing meet and confer efforts were insufficient without attempting to engage in further efforts prior to a motion being filed. The Court reminds the parties the discovery process is designed to be self-executing.

Legal Standard

A motion to compel further responses lies where the responses to the interrogatories are deemed improper by the propounding party, i.e., meritless or overly general objections, evasive or incomplete answers. Code Civ. Proc., § 2030.300. A motion to compel further responses is addressed to the sound discretion of the trial court; the court considers the opposing party's objections; the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; and the burden or expense likely to be encountered by the responding party in furnishing the information sought. *Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.

Where any objection is valid, it is an abuse of discretion to fully grant a motion to compel. *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 850.

Pursuant to Code of Civil Procedure section 2030.220, subdivision (a), “[e]ach answer in response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” Code Civ. Proc., §2030.220(a). Similarly, “[w]here the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient. Likewise, a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions.” *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783. Moreover, “[i]f only partial answers can be supplied, the answers should reveal all information then available to the party.” *Id.* at 782. “If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” *Id.*

Analysis

The Court notes, additionally, Plaintiff failed to support any objections to the identified interrogatories. “[I]f a timely motion to compel has been filed, the burden is on responding party to justify any objection.” *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.

Regarding Interrogatory Nos. 12.2 and 12.3, the objection challenged is the assertion of attorney-client privilege and attorney-client work product. Failing to respond to discovery within the 30-day time limit waives objections to the discovery, including claims of privilege and “work product” protection. Code Civ. Proc. § 2030.290(a), 2031.300(a); see *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906. Here, Plaintiff served untimely verified responses including objections. Motion, 5:9; Mezger Decl., ¶ 7. Therefore, all objections are waived.

While Plaintiff asserted an objection based on undue burden in response to Interrogatory No. 14.1, Plaintiff offers no evidence which establishes undue burden or a resulting injustice. *West Superior Court* (1961) 56 Cal.2d 407, 417. “The objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” *West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417. “The objection of burden is valid only when that burden is demonstrated to result in injustice.” *Id.* at 418. Additionally, the untimeliness of Plaintiff’s verified responses results in all objections being waived.

Based on all of the above, further verified responses, without objections, are ordered as to Form Interrogatory Nos. 12.2, 12.3, and 14.1.

Sanctions

No sanctions were sought by Defendant, yet, statutorily, sanctions must be ordered in favor of a party who prevails on a discovery motion. It could be Defendant is waiving this right. Based on the lack of request and lack of information that would allow the Court to fashion an appropriate

sanction, the Court declines to order sanctions at this time reserving jurisdiction for a period of fifteen (15) days should counsel for Defendant file a declaration re sanctions and get the matter back on calendar.

**6. CU0001912 Old Republic Insurance Company et al vs. United Parcel Service, Inc.
et al**

No appearances required. The Court notes a formal OSC re Dismissal is set for April 13, 2026. As such, appearance today is no longer necessary.

**7. CU0002392 Castle Peak Construction, a California general partnership vs. Jim
Huebner et al**

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for April 17, 2026 at 9:00 a.m.